

-

File No.: EXP202209872

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated October 27, 2023, and based on the following:

FACTS

FIRST: On October 27, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure EXP202209872 against B.B.B.

SECOND: By virtue of the provisions of Article 77.2 of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation, the now appellant was informed, in their capacity as complainant, of the conclusion of the procedure initiated as a result of their complaint.

THIRD: On January 19, 2024, the appellant filed a recourse for reconsideration against the resolution issued in file EXP202209872, in which they express disagreement with the contested resolution.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

In accordance with the provisions of Article 62.5 of the LPACAP, the appellant lacks the status of interested party in the sanctioning procedure, as it states that the filing of a complaint does not, by itself, confer the status of interested party in the procedure. Furthermore, pursuant to Article 116 b) of the LPACAP, the lack of standing of the appellant constitutes grounds for inadmissibility of the recourse.

In this regard, the Supreme Court, in its Judgment of November 26, 2002, stated that “the complainant neither holds a subjective right to obtain a sanction against the accused, nor can a legitimate interest be recognized for them to have their complaint succeed, rights and interests that are the prerequisites that configure standing, according to Article 24.1 of the Constitution and Article 31 of Law 30/92, without arguments related to correcting irregularities or preventing them in the future, or the moral satisfaction that the sanction would entail, or the investigation of the facts for the complainant being valid as supporters of that interest (...).”

Likewise, according to the STS of October 6, 2009 (Rec. 4.712/2005), “(...) the complainant lacks the status of interested party in the sanctioning procedure that may be initiated as a result of their complaint, since neither the LOPD nor its implementing regulation recognize that status.”

Regarding the general principles of sanctioning administrative law, the aforementioned judgment of October 6, 2009 continues, “The crucial argument in this matter is that the complainant, even when considering themselves a “victim” of the reported infringement, does not have a subjective right or a legitimate interest for the accused to be sanctioned. The punitive power belongs solely to the Administration that has the corresponding sanctioning authority – in this case, the Spanish Agency for Data Protection – and consequently, only the Administration has a legally protected interest in the sanctioning of the offender.”

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection dated October 27, 2023, in the sanctioning procedure EXP202209872.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative route, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

1313-061023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es